

TENTATIVE RULINGS

Dion L. Johnson

v.

S. Aceves

22CV003240

[Plaintiff's Motion to Reconsider and/or Modify Motion to Compel Order](#)

[Plaintiff's Motion for Order Appointing Expert Witness](#)

Hearing Date: August 21, 2026

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Plaintiff's Motion to Reconsider and/or Modify Motion to Compel Order

Plaintiff Dion L. Johnson's ("Plaintiff") motion for reconsideration of the Court's June 25, 2026, order requiring him to respond further to Defendant S. Aceves' ("Defendant") Request for Admission ("RFA") No. 10 is **DENIED**.

Legal Standard.

A party may move for reconsideration of an order within 10 days after service on the party of written notice of the order. [Code Civ. Proc. § 1008, subd. (a).] "The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." [*Ibid.*]

The burden under Code of Civil Procedure section 1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." [*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213; *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833 (finding that the reconsideration statute imposes the special requirement of having to not only show new or different facts, circumstances, or law, but also to "show diligence with a satisfactory explanation for not presenting the new or different information earlier...").] A disagreement with a ruling is not a new fact that will support a grant of reconsideration. [*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.]

If the above statutory requirements are met, reconsideration should be granted. However, a court is not required to change its decision upon reconsideration. [*Corns v. Miller* (1986) 181 Cal.App.3d 195, 202.] Although parties may move for reconsideration only as authorized by Code of Civil Procedure section 1008, the statute "do[es] not limit the court's ability, on its own motion, to reconsider its prior interim orders so it may correct its own errors." [*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107.]

Discussion.

Plaintiff's motion is **DENIED** on both procedural and substantive grounds.

Procedurally, the motion fails to comply with Code of Civil Procedure section 1008. Plaintiff provided no affidavit stating what application was previously made, when, to which judge, what order was entered, or what new or different facts, circumstances, or law exist. [Code Civ. Proc. § 1008, subd. (a).] Plaintiff also failed to explain why any purported new matter could not have been presented earlier. [*Ibid.*; *New York Times*, 135 Cal.App.4th at 212-213; *Even Zohar*, 61 Cal.4th at 833.] This alone dooms Plaintiff's motion.

Plaintiff contends that Defendant "mischaracterized" the relevance of RFA 10, asserting that the underlying allegation referenced in the RFA is inadmissible character evidence under Evidence Code section 1101, subdivision (a). [Motion at 2-3.] However, these claims do not

amount to new or different facts, circumstances, or law as defined by Code of Civil Procedure section 1008 and do not meet the necessary criteria. [*New York Times*, 135 Cal.App.4th at 212 (“A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time.”).]

Substantively, even if reconsideration were possible, the Court sees no reason to alter its previous motion-to-compel order. Defendant has presented an acceptable relevance argument, specifically that the later claim relates to causation and damages. [Opp. at 5.] Additionally, Evidence Code section 1101, subdivision (b), permits evidence of other acts when relevant to issues beyond propensity. In fact, discovery can include any information that could reasonably lead to other evidence admissible at trial. [*Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611.] Whether something is discoverable depends not on whether it's ultimately admissible, but on whether it might reasonably lead to admissible evidence. [Code Civ. Proc. § 2017.010; *see Davies v. Superior Court* (1984) 36 Cal.3d 291, 301; *Volkswagen of America, Inc. v. Superior Court* (2006) 139 Cal.App.4th 1481, 1490-1491.] As a result, the Court's previous decision that a further response to RFA No. 10 is necessary remains the same.

Conclusion.

Accordingly, the Motion for Reconsideration is **DENIED**. Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.

Plaintiff's Motion for Order Appointing Expert Witness

Plaintiff Dion L. Johnson (“Plaintiff”) requests appointment of a forensic handwriting/document expert to examine the authenticity of Defendant S. Aceves’ (“Defendant”) handwritten “supervisor end-of-shift report dated March 11, 2022” (the “Report”). [Motion at 1.] Plaintiff asserts concerns regarding similarities in handwriting characteristics, vowel formation, spacing, and signature appearance. [*Ibid.*]

Based on the totality of the circumstances, the Court finds no showing that expert appointment is necessary under Evidence Code section 730. [*Collins v. Superior Court* (1977) 74 Cal.App.3d 47, 52 (“It is within the trial court’s discretion under section 730 to determine whether an expert is needed.”).] Plaintiff does not clearly articulate the nature of the alleged defect—whether he contends Defendant did not write the Report, that it was altered, or that the signature was fabricated. Plaintiff identifies general “similarities” in handwriting but points to no specific portions of the Report raising a bona fide concern. The mere resemblance of handwriting within the same document is neither unusual nor indicative of tampering.

Defendant is the author of the Report and may authenticate it directly under Evidence Code section 1413. Additionally, Defendant’s evidence—including communications from F. Venegas and L. Solis contemporaneous with creation of the Report—supports the document’s authenticity.

The circumstances here do not resemble those in *Smith v. Ogbuehi* (2019) 38 Cal.App.5th 453, or *Hulbert v. Cross* (2021) 65 Cal.App.5th 405, where appointment of experts was required to ensure meaningful access by indigent incarcerated litigants. The authenticity of this routine prison report does not present a technical or essential evidentiary issue requiring expert analysis, nor is it indispensable to Plaintiff’s ability to prosecute his claims. Cross-examination and ordinary evidentiary procedures suffice.

Finally, to the extent Plaintiff seeks production of the original Report, the proper remedy is a motion to compel under Code of Civil Procedure section 2031.310. Plaintiff has not filed such a motion.

Accordingly, the Motion to Appoint a Forensic Document Examiner is **DENIED**. Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.